



AIA[®] Document B209[™] – 2007

Standard Form of Architect's Services: Construction Contract Administration, for use where the Owner has retained another Architect for Design Services

for the following **PROJECT:**
(Name and location or address)

**RENOVATION & EXPANSION OF THE EXISTING
CONSERVATORY / GREENHOUSE AT THE
CHEYENNE BOTANIC GARDENS**
Cheyenne, Wyoming

THE OWNER:
(Name, legal status and address)

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

THE ARCHITECT:
(Name, legal status and address)

TDSi
The Design Studio, inc.
(Paragraph deleted)
Architecture + Interior Design,
1906 Thomes Avenue
(Paragraphs deleted)
Cheyenne, Wyoming 82001

TABLE OF ARTICLES

- | | |
|---|--|
| 1 | GENERAL |
| 2 | CONSTRUCTION CONTRACT ADMINISTRATION SERVICES |
| 3 | ADDITIONAL SERVICES |
| 4 | OWNER'S RESPONSIBILITIES |
| 5 | COMPENSATION |
| 6 | SPECIAL TERMS AND CONDITIONS |

ADDITIONS AND DELETIONS:

The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added necessary information and where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Before using this document, verify whether the jurisdiction where the Project is located requires the architect that signs and/or seals the Contract Documents also to perform construction contract administration.

This document provides the Architect's scope of services only and must be used with an owner-architect agreement. It may be used with G802[™]–2007, Amendment to the Professional Services Agreement, to create a modification to any owner-architect agreement.

ARTICLE 1 GENERAL

§ 1.1 INITIAL INFORMATION

The Architect's performance of the services set forth in this document is based upon the following information. Material changes to this information may entitle the Architect to Additional Services.

§1.1. The Owner's anticipated dates for commencement of construction and Substantial Completion of the Work are set forth below:

- .1 Commencement of construction date: December 1, 2013
- .2 Substantial Completion dates:
 - .1 Phase 2 - Construction of the Conservatory Addition: February 28, 2015
 - .2 Phase 3 - Renovation of, and Addition to the Existing CBG Conservatory / Greenhouse: December 31, 2015

§ 1.2 BASIC DEFINITIONS

§ 1.2.1 THE CONTRACT DOCUMENTS

For purposes of this Agreement, the Contract Documents consist of the Owner/Contractor Agreement, Conditions of the Contract (General, Supplementary and other Conditions), Drawings, and Specifications, and other documents listed in the Agreement. The Contract Documents do not include the advertisement or invitation to bid, Instructions to Bidders, sample forms, or other information furnished by the Owner in anticipation of receiving bids or proposals.

§ 1.2.2 THE OWNER

The Owner is the person or entity identified as such in the Agreement and is referred to throughout the Contract Documents as if singular in number. The Owner shall designate in writing a representative who shall have express authority to bind the Owner with respect to all matters requiring the Owner's approval or authorization. Except as otherwise provided in Section 4.2.1, the Architect does not have such authority. The term "Owner" means the Owner or the Owner's authorized representative.

§ 1.2.3 THE WORK

For purposes of this Agreement, the term "Work" means the construction and services required by the Contract Documents, and includes all other labor, materials, equipment and services to be provided by the Contractor to fulfill the Contractor's obligations. The Work may constitute the whole or a part of the Project.

§ 1.2.3 THE PROJECT

The Project is the total construction of which the Work performed under the Contract Documents may be the whole or a part and which may include construction by the Owner and by separate contractors.

§ 1.2.4 THE DRAWINGS

The Drawings are the graphic and pictorial portions of the Contract Documents showing the design, location and dimensions of the Work, generally including plans, elevations, sections, details, schedules and diagrams.

§ 1.2.5 THE SPECIFICATIONS

The Specifications are that portion of the Contract Documents consisting of the written requirements for materials, equipment, systems, standards and workmanship for the Work, and performance of related services.

(Paragraphs deleted)

§ 1.2.6 INSTRUMENTS OF SERVICE

Instruments of Service are representations, in any medium of expression now known or later developed, of the tangible and intangible creative work performed by the Architect and the Architect's consultants under their respective professional services agreements. Instruments of Service may include, without limitation, studies, surveys, models, sketches, drawings, specifications, and other similar materials. Where required by Wyoming law, final Instruments of Service shall bear the seal, signature and date of the Architect and the Architect's consultants.

§ 1.3 ARCHITECT'S RESPONSIBILITIES

§ 1.3.1 The Architect shall provide the professional services as set forth in this Agreement.

§ 1.3.2 The Architect shall perform its services consistent with the professional skill and care ordinarily provided by architects practicing in the same or similar locality under the same or similar circumstances. The Architect shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project.

§ 1.3.3 The Architect shall identify a representative authorized to act on behalf of the Architect with respect to the Project.

§ 1.3.4 Except with the Owner's knowledge and consent, the Architect shall not engage in any activity, or accept any employment, interest or contribution that would reasonably appear to compromise the Architect's professional judgment with respect to this Project. By executing this Agreement, the Architect certifies, under oath, that he has not in any way received, directly or indirectly, any gratuity, kickback, or contingent fee in connection with his selection to perform the Basic Services, Additional Services, and such further services as are described in this Agreement.

§ 1.3.5 The Architect shall maintain the following insurance for the duration of this Agreement. If any of the requirements set forth below exceed the types and limits the Architect normally maintains, the Owner shall reimburse the Architect for any additional cost:

.1 General Liability:

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per claimant, \$2,000,000 per occurrence for the entire term of the contract.

.2 Automobile Liability:

For non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,00,000 per accident for the entire term of the contract.

If at any time during the term of this Agreement the Architect purchases any automobiles, the Architect's Automobile Liability insurance shall be extended to cover owned vehicles with the minimum limits stated above.

.3 Workers' Compensation:

Workers' Compensation coverage shall be in effect, as required by Wyoming law, for all employees or agents providing services under this agreement.

.4 Professional Liability:

The policy shall be a "claims made" policy with a maximum limit of liability of not less than \$500,000 per claim, with an aggregate limit of not less than \$1,000,000 per year to protect the Owner from claims arising from the Architect's negligence in the performance of duties under this Agreement. The coverage shall remain in effect for a period of five (5) years following the last date that Architect has provided services under this Agreement. In the event the Architect or the insurer terminates coverage prior to the expiration of the periods noted above, the Architect shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Architect has provided services under this Agreement.

§ 1.3.6 The Architect shall name the Owner as an Additional Insured by endorsement on its General Liability and Automobile Liability insurance policy or policies, and shall provide the Owner with a copy of the endorsements.

§ 1.3.7 It is understood and agreed that these policies are primary and not contributory. Certificates showing proof of such insurance shall be submitted to the Owner prior to commencement of this Agreement. In the event the Architect's services extend into a future policy period, the Architect shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Architect will provide services under this Agreement;

§ 1.3.8 It shall be an affirmative obligation upon the Architect to advise the Owner's Risk Manager or designee at Fax Number (307)638-4340, e-mail btennant@cheyennecity.org, or in person at 2101 O'Neil Avenue, Room 102, Cheyenne, WY within two days of the cancellation or substantive change of any insurance policy required in this Agreement. Failure to do so shall be construed to be a breach of this Agreement.

§ 1.3.9 The Owner's failure to request or review such certificates and endorsements shall not affect the Owner's rights or the Architect's obligation hereunder.

§ 1.3.10 Any insurance company providing coverage under this agreement shall have a minimum A M Best rating of A (excellent).

1.4 SCOPE OF ARCHITECT'S BASIC SERVICES

§ 1.4.1 The Architect's Basic Services consist of those described in Article 2 and include usual and customary structural, mechanical, and electrical engineering services.

§ 1.4.1.1 The Architect shall manage the Architect's services, consult with the Owner, attend Project meetings, communicate with members of the Project team and report progress to the Owner.

§ 1.4.1.2 The Architect shall coordinate its services with those services provided by the Owner and the Owner's consultants. The Architect shall be entitled to rely on the accuracy and completeness of services and information furnished by the Owner and the Owner's consultants. The Architect shall provide prompt written notice to the Owner if the Architect becomes aware of any error, omission or inconsistency in such services or information.

§ 1.4.1.3 The Architect shall not be responsible for an Owner's directive or substitution made without the Architect's approval.

§ 1.4.1.4 The Architect shall assist the Owner in connection with the Owner's responsibility for filing documents required for the approval of governmental authorities having jurisdiction over the Project.

ARTICLE 2 CONSTRUCTION CONTRACT ADMINISTRATION SERVICES

§ 2.1 The Architect shall provide Construction Contract Administration Services for the Project.

§ 2.2 The Architect shall administer the Contract for Construction. The Architect shall coordinate its services and those of its consultants with those services provided by the Owner and the Owner's consultants.

§ 2.3 Subject to Section 3.3, the Architect's responsibility to provide the Contract Administration Services commences with Bidding or Negotiation Services and terminates on the date the Architect issues the final Certificate for Payment.

§ 2.4 The Architect shall provide administration of the Contract between the Owner and the Contractor as set forth herein.. The Architect shall have the right to review the Owner's proposed Owner/Contractor Agreement prior to this project going out to Bid. If the Owner/Contractor Agreement proposed by the Owner modifies or conflicts with the Architect's responsibilities under this Agreement, the parties shall attempt to resolve any such conflicts. In the event any such conflicts cannot be resolved, either the Owner or the Architect shall have the right to withdraw from this Agreement without liability other than payment for actual work performed and expenses incurred by the Architect pursuant to Section 5.6 of this Agreement.

§ 2.5 The Architect shall advise and consult with the Owner during the provision of the Construction Contract Administration Services. The Architect shall have authority to act on behalf of the Owner only to the extent provided in this Agreement. The Architect shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work,

nor shall the Architect be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Architect shall be responsible for the Architect's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for, acts or omissions of the Contractor or of any other persons or entities performing portions of the Work.

§ 2.6 The Architect shall interpret and decide matters concerning performance under, and requirements of, the Contract Documents on written request of either the Owner or Contractor. The Architect's response to such requests shall be made in writing within any time limits agreed upon or otherwise with reasonable promptness.

§ 2.7 Interpretations and decisions of the Architect shall be consistent with the intent of, and reasonably inferable from, the Contract Documents. When making such interpretations and decisions, the Architect shall endeavor to secure faithful performance by both Owner and Contractor, shall not show partiality to either, and shall not be liable for the results of interpretations or decisions rendered in good faith.

§ 2.8 If appropriate, the Architect shall, on the Owner's behalf, prepare, reproduce and distribute supplemental drawings, specifications and interpretations in response to requests for information by the Contractor relative to changed requirements and schedule revisions.

§ 2.9 The Architect shall decide matters relating to aesthetic effect. Such decisions shall be final if consistent with the intent expressed in the Contract Documents.

(Paragraphs deleted)

§ 2.12 BIDDING SERVICES

§ 2.12.1 The Architect shall assist the Owner in establishing a list of prospective contractors. Following the Owner's approval of the Construction Documents, and subject to the requirements of State law, the Cheyenne City Code, and the City's Purchasing Manual, the Architect shall assist the Owner in (1) obtaining competitive bids (2) confirming the responsiveness of bids or proposals; (3) determining the successful bid or proposal, if any; and (4) awarding and preparing contracts for construction.

§ 2.12.2 COMPETITIVE BIDDING

§ 2.12.2.1 Bidding Documents shall consist of bidding requirements and proposed Contract Documents.

§ 2.12.2.2 The Architect shall assist the Owner in bidding the Project by

- .1 ensuring compliance with the requirements of State law and the Cheyenne City Code for the provision of public notice to prospective bidders, including posting Bidding Documents to a secure digital plan delivery service accessible to prospective bidders;
- .2 organizing and conducting one (1) pre-bid conference for prospective bidders;
- .3 preparing responses to questions from prospective bidders and providing clarifications and interpretations of the Bidding Documents to all prospective bidders in the form of addenda; and
- .4 organizing and conducting the opening of the bids and, subsequently documenting and distributing the bidding results, as directed by the Owner.

§ 2.12.2.3 If the Bidding Documents permit substitutions, the Architect shall consider requests for substitutions and shall prepare and distribute addenda identifying approved substitutions to all prospective bidders.

§ 2.13 CONTRACT ADMINISTRATION SERVICES

§ 2.13.1 GENERAL

§ 2.13.1.1 The Architect shall provide administration of the Contract between the Owner and the Contractor as set forth below. The Architect shall have the right to review the Owner's proposed Owner/Contractor Agreement prior to this project going out to Bid. If the Owner/Contractor Agreement proposed by the Owner modifies or conflicts with the Architect's responsibilities under this Agreement, the parties shall attempt to resolve any such conflicts. In the event any such conflicts cannot be resolved, either the Owner or the Architect shall have the right to withdraw from this Agreement without liability other than payment for actual work performed and expenses incurred by the Architect pursuant to Section 5.6 of this Agreement.

§ 2.13.1.2 The Architect shall advise and consult with the Owner during the Construction Phase Services. The Architect shall have authority to act on behalf of the Owner only to the extent provided in this Agreement. The Architect shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work, nor shall the Architect be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Architect shall be responsible for the Architect's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for, acts or omissions of the Contractor or of any other persons or entities performing portions of the Work.

§ 2.13.1.3 Subject to Section 3.3, the Architect's responsibility to provide Construction Phase Services commences with the award of the Contract for Construction and terminates on the date the Architect issues the final Certificate for Payment.

§ 2.13.2 EVALUATIONS OF THE WORK

§ 2.13.2.1 The Architect shall visit the site at intervals appropriate to the stage of construction, or as otherwise required in Section 3.3, to become generally familiar with the progress and quality of the portion of the Work completed, and to determine, in general, if the Work observed is being performed in a manner indicating that the Work, when fully completed, will be in accordance with the Contract Documents. However, the Architect shall not be required to make exhaustive or continuous on-site inspections to check the quality or quantity of the Work. On the basis of the site visits, the Architect shall keep the Owner reasonably informed about the progress and quality of the portion of the Work completed, and report to the Owner (1) known deviations from the Contract Documents and from the most recent construction schedule submitted by the Contractor, and (2) defects and deficiencies observed in the Work.

§ 2.13.2.2 The

(Paragraphs deleted)

Architect has the authority to reject Work that does not conform to the Contract Documents. Whenever the Architect considers it necessary or advisable, the Architect shall have the authority to require inspection or testing of the Work in accordance with the provisions of the Contract Documents, whether or not such Work is fabricated, installed or completed. However, neither this authority of the Architect nor a decision made in good faith either to exercise or not to exercise such authority shall give rise to a duty or responsibility of the Architect to the Contractor, Subcontractors, material and equipment suppliers, their agents or employees or other persons or entities performing portions of the Work.

(Paragraphs deleted)

§ 2.14 CERTIFICATES FOR PAYMENTS TO CONTRACTOR

§ 2.14.1 The Architect shall review and certify the amounts due the Contractor and shall issue Certificates for Payment in such amounts. The Architect's certification for payment shall constitute a representation to the Owner, based on the Architect's evaluation of the Work as provided in Section 2.13.2 and on the data comprising the Contractor's Application for Payment, that, to the best of the Architect's knowledge, information and belief, the Work has progressed to the point indicated and that the quality of the Work is in accordance with the Contract Documents. The foregoing representations are subject (1) to an evaluation of the Work for conformance with the Contract Documents upon Substantial Completion, (2) to results of subsequent tests and inspections, and (3) to correction of minor deviations from the Contract Documents prior to completion.

(Paragraphs deleted)

§ 2.14.2 The issuance of a Certificate for Payment shall not be a representation that the Architect has (1) made exhaustive or continuous on-site inspections to check the quality or quantity of the Work, (2) reviewed construction means, methods, techniques, sequences or procedures, (3) reviewed copies of requisitions received from Subcontractors and material suppliers and other data requested by the Owner to substantiate the Contractor's right to payment, or (4) ascertained how or for what purpose the Contractor has used money previously paid on account of the Contract Sum.

§ 2.14.3 The Architect shall maintain a record of Applications and Certificates for Payment.

§ 2.15 SUBMITTALS

§ 2.15.1 The Architect shall review and approve the Contractor's submittal schedule and shall not unreasonably delay or withhold approval. The Architect's action in reviewing submittals shall be taken in accordance with the approved

submittal schedule or, in the absence of an approved submittal schedule, with reasonable promptness, while allowing sufficient time in the Architect's professional judgment to permit adequate review.

§ 2.15.2 In accordance with the Architect-approved submittal schedule, the Architect shall review and approve or take other appropriate action upon the Contractor's Submittals such as Shop Drawings, Product Data and Samples, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents. Review of such submittals is not for the purpose of determining the accuracy and completeness of other information such as dimensions, quantities, and installation or performance of equipment or systems, which are the Contractor's responsibility. The Architect's review shall not constitute approval of safety precautions or, unless otherwise specifically stated by the Contract Administration Architect, of any construction means, methods, techniques, sequences or procedures of construction, fabrication, transportation or installation. The Architect's approval of a specific item shall not indicate approval of an assembly of which the item is a component.

§ 2.15.3 If the Contract Documents specifically require the Contractor to provide professional design services or certifications by a design professional related to systems, materials or equipment, the Architect shall specify the appropriate performance and design criteria that such services must satisfy. The Architect shall review Shop Drawings and other Submittals related to the Work designed or certified by the design professional retained by the Contractor that bear such professional's seal and signature when submitted to the Contract Administration Architect. The Architect shall be entitled to rely upon the adequacy, accuracy and completeness of the services, certifications and approvals performed or provided by such design professionals.

§ 2.15.4 Subject to Section 3.3, the Architect shall review and respond to requests for information about the Contract Documents. The Architect shall set forth in the Contract Documents the requirements for requests for information. Requests for information shall include, at a minimum, a detailed written statement that indicates the specific Drawings or Specifications in need of clarification and the nature of the clarification requested. The Architect's response to such requests shall be made in writing within any time limits agreed upon, or otherwise with reasonable promptness. If appropriate, the Architect shall prepare and issue supplemental Drawings and Specifications in response to requests for information.

§ 2.15.5 The Architect shall maintain a record of submittals and copies of submittals supplied by the Contractor in accordance with the requirements of the Contract Documents.

§ 2.16 CHANGES IN THE WORK

§ 2.16.1 The Architect may authorize minor changes in the Work not involving an adjustment in Contract Sum or an extension of the Contract Time that are consistent with the intent of the Contract Documents.

§ 2.16.2 The Architect shall prepare Change Orders and Construction Change Directives, of reasonable quantity, for the Owner's approval and execution in accordance with the Contract Documents and the applicable laws and ordinances.

§ 2.16.3 The Architect shall maintain records relative to changes in the Work.

(Paragraphs deleted)

§ 2.17 PROJECT COMPLETION

§ 2.17.1 The Architect shall conduct inspections to determine the date or dates of Substantial Completion and the date of final completion; issue Certificates of Substantial Completion; receive from the Contractor and forward to the Owner for the Owner's review and records, written warranties and related documents required by the Contract Documents and assembled by the Contractor; and issue a final Certificate for Payment based upon a final inspection indicating the Work complies with the requirements of the Contract Documents

§ 2.17.2 The Architect's inspections shall be conducted with the Owner to check conformance of the Work with the requirements of the Contract Documents and to verify the accuracy and completeness of the list submitted by the Contractor of Work to be completed or corrected.

(Paragraphs deleted)

§ 2.17.3 When the Work is found to be substantially complete, the Architect shall inform the Owner about the balance of the Contract Sum remaining to be paid the Contractor, including the amount to be retained from the Contract Sum, if any, for final completion or correction of the Work.

§ 2.17.4 The Architect shall forward to the Owner the following information received from the Contractor: (1) consent of surety or sureties, if any, to reduction in or partial release of retainage or the making of final payment (2) affidavits, receipts, releases and waivers of liens or bonds indemnifying the Owner against liens, and (3) any other documentation required of the Contractor under the Contract Documents.

ARTICLE 3 ADDITIONAL SERVICES

§ 3.1 In addition to the Construction Contract Administration Services described above, the Architect shall provide other services only if specifically designated below. The Architect shall perform such other services in accordance with a service description provided in Section 3.2 or attached as an exhibit to this services document.

Services	Responsibilities (Contract Administration Architect, Owner or Not Provided)	Location of Service Description (Section 3.2 below or an exhibit attached to this document and identified below)
§ 3.1.1 Special Bidding or Negotiation	Not Provided	Not Applicable
§ 3.1.2 On-Site Project Representation	Not Provided	Not Applicable
(Rows deleted)		
§ 3.1.3 Start-up Assistance	Not Provided	Not Applicable
§ 3.1.4 Commissioning of Mechanical and Electrical Systems	Not Provided at This Time; May Be Added as an Additional Service Later	Not Applicable
(Row deleted)		
§ 3.1.5 Facility Support Services	Not Provided	Not Applicable
§ 3.1.6 Post-Contract Evaluation	Not Provided	Not Applicable
§ 3.1.7 Record Drawing Services	Architect	3.2.1.1
(Row deleted)		
§ 3.1.8 Warranty Review	Architect	3.2.1.2
§ 3.1.9 Procurement and Installation Assistance for Furniture, Furnishings and Equipment (FF&E)	Not Provided at This Time; May Be Added as an Additional Service Later	Not Applicable
§ 3.1.10 Other Services	Not Provided at This Time; May Be Added as an Additional Service Later	Not Applicable

§ 3.2 DESIGNATED ADDITIONAL SERVICES

3.2.1 POST-CONTRACT SERVICES

§ 3.2.1 The Architect shall provide Post-Contract services as set forth below.

.1 Record Drawing Services consisting of:

- .1 Making arrangements for obtaining from Contractor(s) information in the form of marked-up prints, drawings and other data certified by them on changes made during performance of the Work
- .2 Review of general accuracy of information submitted and certified by the Contractor(s)
- .3 Preparation of record drawings, based on certified information furnished by the Contractor(s)
- .4 Transmittal of record drawings and general data, appropriately identified, to the Owner and others as directed.

.2 Warranty Review consisting of:

- .1 Consultation and recommendation to the Owner during the duration of warranties in connection with inadequate performance of materials, systems and equipment under warranty
- .2 Inspection(s) prior to expiration of the warranty period(s) to ascertain adequacy of performance of materials, systems and equipment
- .3 Documenting defects or deficiencies and assisting the Owner in preparing instruction to the Contractor(s) for correction of noted defects.

§ 3.3 Additional Services authorized in writing by the Owner, may be provided after execution of this Agreement, without invalidating the Agreement. Except for services required due to the fault of the Architect, any Additional Services authorized in writing by the Owner and provided in accordance with this Section 3.3 shall entitle the Architect to compensation pursuant to Section 5.3 and an appropriate adjustment in the Architect's schedule.

§ 3.3.1 Upon recognizing the need to perform the following Additional Services, the Architect shall notify the Owner with reasonable promptness and explain the facts and circumstances giving rise to the need. The Architect shall not proceed to provide the following services until the Architect receives the Owner's written authorization:

- .1 Services necessitated by a change in the Initial Information, previous instructions or approvals given by the Owner, or a material change in the Project including, but not limited to, size, quality, complexity, the Owner's schedule or budget for Cost of the Work, or procurement or delivery method;
- .2 Services necessitated by decisions of the Owner not rendered in a timely manner or any other failure of performance on the part of the Owner or the Owner's consultants or contractors;
- .3 Preparation for, and attendance at, a public presentation, meeting or hearing;
- .4 Preparation for, and attendance at a dispute resolution proceeding or legal proceeding, except where the Architect is party thereto;
- .5 Evaluation of the qualifications of bidders or persons providing proposals;
- .6 Consultation concerning replacement of Work resulting from fire or other cause during construction; or
- .7 Assistance to the Initial Decision Maker, if other than the Architect.

§ 3.3.2 To avoid delay in construction, the Architect shall provide the following Additional Services, notify the Owner in writing, within 48 hours, and explain the facts and circumstances giving rise to the need. If the Owner subsequently determines that all or parts of those services are not required, the Owner shall give written notice to the Architect within 48 hours of receipt of the Architect's notice, and the Owner shall have no further obligation to compensate the Architect for those services:

- .1 Reviewing a Contractor's submittal out of sequence from the submittal schedule agreed to by the Architect;
- .2 Responding to the Contractor's requests for information that are not prepared in accordance with the Contract Documents or where such information is available to the Contractor from a careful study and comparison of the Contract Documents, field conditions, other Owner-provided information, Contractor-prepared coordination drawings, or prior Project correspondence or documentation;
- .3 Preparing Change Orders and Construction Change Directives that require evaluation of Contractor's proposals and supporting data, or the preparation or revision of Instruments of Service;
- .4 Evaluating an extensive number of Claims;
- .5 Evaluating substitutions proposed by the Owner or Contractor and making subsequent revisions to Instruments of Service resulting therefrom; or
- .6 To the extent the Architect's Basic Services are affected, providing Construction Phase Services 60 days after (1) the date of Substantial Completion of the Work or (2) the anticipated date of Substantial Completion identified in Initial Information, whichever is earlier.

§ 3.3.3 The Architect shall provide Contract Administration or Post-Contract Services exceeding the limits set forth below as Additional Services. When the limits below are reached, the Architect shall notify the Owner:

- .1 1 (One) review of each Shop Drawing, Product Data item, sample and similar submittal of the Contractor
- .2 the following approximate number of visits to the site by the Architect and the Architect's Consultants, over the duration of the Project during construction
 - a. Architect.....174
 - b. Civil Engineer..... 6
 - c. Landscape Architect..... 8

- d. Irrigation Consultant 2
- e. Structural Engineer 12
- f. Mechanical Engineer..... 40
- g. Electrical Engineer..... 28
- h. Glasshouse Consultant 2
- .3 1 (One) inspection for any portion of the Work to determine whether such portion of the Work is substantially complete in accordance with the requirements of the Contract Documents
- .4 1 (One) inspection for any portion of the Work to determine final completion
- .5 2 (Two) inspections prior to expiration of the warranty period(s) to ascertain adequacy of performance of materials, systems and equipment.

ARTICLE 4 OWNER'S RESPONSIBILITIES

§ 4.1 The Owner shall identify a representative authorized to act on the Owner's behalf with respect to the Project. The Owner shall render decisions and approve the Architect's submittals in a timely manner in order to avoid unreasonable delay in the orderly and sequential progress of the Architect's services.

§ 4.2 Unless otherwise provided for under this Agreement, the Owner shall provide information in a timely manner regarding requirements for and limitations on the Project, including a written program which shall set forth the Owner's objectives, schedule, constraints and criteria, including space requirements and relationships, flexibility, expandability, special equipment, systems and site requirements. Within 15 days after receipt of a written request from the Architect, the Owner shall furnish the requested information as necessary and relevant for the Architect to carry out his duties.

§ 4.3 Subject to the requirements of the Owner's Purchasing Manual, and subject to the approval of the Governing Body of the City of Cheyenne when required by Cheyenne City Code, the Owner shall furnish surveys to describe physical characteristics, legal limitations and utility locations for the site of the Project, and written legal description of the site. The surveys and legal information shall include, as applicable, grades and lines of streets, alleys, pavements and adjoining property and structures; adjacent drainage; rights-of-way, restrictions, easements, encroachments, zoning, deed restrictions, boundaries and contours of the site; locations, dimensions, and necessary data with respect to existing buildings, other improvements and trees; and information concerning available utility services and lines, both public and private, above and below grade, including inverts and depths. All information on the survey shall be referenced to a Project benchmark.

§ 4.4 Subject to the requirements of the Owner's Purchasing Manual, and subject to the approval of the Governing Body of the City of Cheyenne when required by Cheyenne City Code, the Owner shall furnish services of geotechnical engineers and construction testing services, which may include but are not limited to test borings, test pits, determinations of soil bearing values, percolation tests, evaluations of hazardous materials, ground corrosion tests and resistivity tests, including necessary operations for anticipating subsoil conditions, with reports and appropriate recommendations.

§ 4.5 Except when direct communications have been specially authorized, the Owner shall endeavor to communicate with the Contractor through the Architect about matters arising out of or relating to the Contract Documents. The Owner shall notify the Architect of any direct communication between the Owner and the Contractor. Communications by and with the Architect's consultants shall be through the Contract Administration Architect.

§ 4.6 Subject to the requirements of the Owner's Purchasing Manual, and subject to the approval of the Governing Body of the City of Cheyenne when required by Cheyenne City Code, the Owner shall furnish tests, inspections and reports required by law or the Contract Documents, such as structural, mechanical, and chemical tests, tests for air and water pollution, and tests for hazardous materials. The Architect shall notify the Owner in writing of tests required by law, or that he may become aware are recommended or required due to the discovery of hazardous materials.

§ 4.7 The Owner shall provide the Architect access to the Project site prior to commencement of the Work and shall obligate the Contractor to provide the Architect access to the Work wherever it is in preparation or progress.

§ 4.8 Before executing the Contract for Construction, the Owner shall coordinate the Architect's duties and responsibilities set forth in the Contract for Construction with the Architect's services set forth herein. The Owner

shall provide the Architect a copy of the executed agreement between the Owner and Contractor, including the General Conditions of the Contract for Construction.

§ 4.9 The Owner shall coordinate the services of its own consultants with those services provided by the Architect. Upon the Architect's request, the Owner shall furnish copies of the scope of services in the contracts between the Owner and the Owner's consultants. If at any time during this Project the Architect believes that services of consultants other than those designated in this Agreement are reasonably required by the scope of the Project, the Architect shall provide a written request to the Owner for such services, shall demonstrate that they are reasonably required by the scope of the Project, and shall inform the Owner of the consequences of not having those services provided on the Project. The Owner shall consider the Architect's request and shall furnish services of the consultants required, shall authorize the Architect to furnish them as an Additional Service, or shall inform the Architect in writing of their decision otherwise. The Owner shall require that its consultants maintain professional liability insurance as appropriate to the services provided. Nothing in this section shall be construed as imposing an obligation on the Owner to retain consultants of any type.

§ 4.10 The Owner shall provide prompt written notice to the Architect if the Owner becomes aware of any fault or defect in the Project, including errors, omissions or inconsistencies in the Architect's Instruments of Service.

§ 4.11 Except as otherwise provided in this Agreement, or when direct communications have been specially authorized, the Owner shall endeavor to communicate with the Contractor and the Architect's consultants through the Architect about matters arising out of or relating to the Contract Documents. The Owner shall promptly notify the Architect of any direct communications that may affect the Architect's services.

ARTICLE 5 COMPENSATION

§ 5.1 For the Architect's Services described under Article 2, the Owner shall compensate the Architect as follows:
(Insert amount of, or basis for, compensation.)

.1 Bidding Services	\$35,000	plus reimbursable expenses
.2 Contract Administration Services	\$721,000	plus reimbursable expenses
.3 Post-Contract Services	\$19,000	plus reimbursable expenses
.4 Total Contract Amount	\$775,000	plus reimbursable expenses

§ 5.2 For Additional Services designated in Section 3.1, the Owner shall compensate the Architect as follows:
(Insert amount of, or basis for, compensation. If necessary, list specific services to which particular methods of compensation apply.)

Not Applicable

§ 5.3 For Additional Services that may arise during the course of the Project, including those under Section 3.3, the Owner shall compensate the Architect as follows:
(Insert amount of, or basis for, compensation.)

Based upon the hourly rates of the Architect and the Architect's consultants shown in Attachment A hereto, or a mutually negotiated stipulated sum

§ 5.4 Compensation for Additional Services of the Architect's consultants when not included in Section 5.2 or 5.3, shall be the amount invoiced to the Architect plus Ten Percent percent (10 %).

§ 5.5 COMPENSATION FOR REIMBURSABLE EXPENSES

§ 5.5.1 Reimbursable Expenses are in addition to compensation for Basic and Additional Services and include expenses incurred by the Architect and the Architect's consultants directly related to the Project, as follows:

- .1 Transportation and authorized out-of-town travel and subsistence;
- .2 Long distance services, dedicated data and communication services, teleconferences, Project Web sites, and extranets;
- .3 Fees paid for securing approval of authorities having jurisdiction over the Project;
- .4 Printing, reproductions, plots, standard form documents;
- .5 Postage, handling and delivery;

- .6 Expense of overtime work requiring higher than regular rates, if authorized in advance by the Owner;
- .7 Renderings, models, mock-ups, professional photography, and presentation materials requested by the Owner;
- .8 Architect's consultant's expense of professional liability insurance dedicated exclusively to this Project, or the expense of additional insurance coverage or limits if the Owner requests such insurance in excess of that normally carried by the Architect's consultants;
- .9 All taxes levied on professional services and on reimbursable expenses;
- .10 Project Information Management Software (Newforma Project Cloud); and
- .11 Other similar Project-related expenditures.

§ 5.5.2 For Reimbursable Expenses the compensation shall be the expenses incurred by the Architect and the Architect's consultants plus Ten percent (10.00 %) of the expenses incurred.

§ 5.5.3 For Reimbursable Expenses incurred by the Architect, and the Architect's consultants, utilizing their office equipment and other resources shall be billed at the rates shown on Attachment A hereto.

§ 5.6 PAYMENTS TO THE ARCHITECT

§ 5.6.1 Initial Payment – No Initial Payment will be required.

§ 5.6.2 Unless otherwise agreed, payments for services shall be made monthly in proportion to services performed. Payments are due and payable upon presentation of the Architect's invoice. Amounts unpaid Sixty (60) days after the invoice date shall bear interest at the rate entered below, or in the absence thereof at the legal rate prevailing from time to time at the principal place of business of the Architect.

Wall Street Journal Prime Rate, per annum, up to a maximum of six and one half percent (6.5%) per annum

§ 5.6.3 The Owner shall not withhold amounts from the Architect's compensation to impose a penalty or liquidated damages on the Architect, or to offset sums requested by or paid to contractors for the cost of changes in the Work unless the Architect agrees or has been found liable for the amounts in a binding dispute resolution proceeding.

§ 5.6.4 Records of Reimbursable Expenses, expenses pertaining to Additional Services, and services performed on the basis of hourly rates shall be available to the Owner at mutually convenient times.

ARTICLE 6 CLAIMS AND DISPUTES

§ 6.1 GENERAL

§ 6.1.1 The Owner and Architect shall commence all claims and causes of action, whether in contract, tort, or otherwise, against the other arising out of or related to this Agreement in accordance with the requirements of Wyoming law. The Owner and Architect waive all claims and causes of action not commenced in accordance with this Section 6.1.1.

§ 6.1.2 The Architect and Owner do not waive consequential damages for claims, disputes or other matters in question arising out of or relating to this Agreement, including consequential damages due to either party's termination of this Agreement.

§ 6.2 MEDIATION

§ 6.2.1 Any claim, dispute or other matter in question arising out of or related to this Agreement shall be subject to mediation as a condition precedent to binding dispute resolution.

§ 6.2.2 The Owner and Architect shall endeavor to resolve claims, disputes and other matters in question between them by mediation. A request for mediation shall be made in writing, and delivered to the other party to the Agreement.. The request may be made concurrently with the filing of a complaint , in such event, mediation shall proceed in advance of further proceedings, which shall be stayed pending mediation for a period of 60 days from the date of filing, unless stayed for a longer period by agreement of the parties or court order.

§ 6.2.3 The parties shall share the mediator's fee and any filing fees equally. The mediation shall be held in the place where the Project is located, unless another location is mutually agreed upon. Agreements reached in mediation shall be enforceable as settlement agreements in any court having jurisdiction thereof.

§ 6.2.4 If the parties do not resolve a dispute through mediation pursuant to this Section 8.2, the method of binding dispute resolution shall be litigation in a court of competent jurisdiction.

ARTICLE 7 TERMINATION OR SUSPENSION

§ 7.1 If the Owner fails to make payments to the Architect in accordance with this Agreement, such failure shall be considered substantial nonperformance and cause for termination or, at the Architect's option, cause for suspension of performance of services under this Agreement. If the Architect elects to suspend services, the Architect shall give seven days' written notice to the Owner before suspending services. In the event of a suspension of services, the Architect shall have no liability to the Owner for delay or damage caused the Owner because of such suspension of services. Before resuming services, the Architect shall be paid all sums due prior to suspension and any expenses incurred in the interruption and resumption of the Architect's services. The Architect's fees for the remaining services and the time schedules shall be equitably adjusted.

§ 7.2 If the Owner suspends the Project, the Architect shall be compensated for services performed prior to notice of such suspension. When the Project is resumed, the Architect shall be compensated for expenses incurred in the interruption and resumption of the Architect's services. The Architect's fees for the remaining services and the time schedules shall be equitably adjusted.

§ 7.3 If the Owner suspends the Project for more than 90 cumulative days for reasons other than the fault of the Architect, the Architect may terminate this Agreement by giving not less than seven days' written notice.

§ 7.4 Either party may terminate this Agreement upon not less than seven days' written notice should the other party fail substantially to perform in accordance with the terms of this Agreement through no fault of the party initiating the termination.

§ 7.5 The Owner may terminate this Agreement upon not less than seven days' written notice to the Architect for the Owner's convenience and without cause.

§ 7.6 In the event of termination not the fault of the Architect, the Architect shall be compensated for services performed prior to termination, together with Reimbursable Expenses then due.

ARTICLE 8 SPECIAL TERMS AND CONDITIONS

Special terms and conditions that modify this Standard Form of Architect's Services: Construction Contract Administration, if any, are as follows:

§ 8.1 GOVERNING LAW, JURISDICTION and VENUE

§ 8.1.1 The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

§ 8.2 The Owner and Architect, respectively, bind themselves, their agents, successors, assigns and legal representatives to this Agreement. Neither the Owner nor the Architect shall assign this Agreement without the written consent of the other, except that the Owner may assign this Agreement to a lender providing financing for the Project if the lender agrees to assume the Owner's rights and obligations under this Agreement.

§ 8.3 If the Owner requests the Architect to execute certificates, the proposed language of such certificates shall be submitted to the Architect for review at least 14 days prior to the requested dates of execution. If the Owner requests the Architect to execute consents reasonably required to facilitate assignment to a lender, the Architect shall execute all such consents that are consistent with this Agreement, provided the proposed consent is submitted to the Architect for review at least 14 days prior to execution. The Architect shall not be required to execute certificates or consents that would require knowledge, services or responsibilities beyond the scope of this Agreement.

§ 8.4 Nothing contained in this Agreement shall create a contractual relationship with or a cause of action in favor of a third party against either the Owner or Architect.

§ 8.5 Unless otherwise required in this Agreement, the Architect shall have no responsibility for the discovery, presence, handling, removal or disposal of, or exposure of persons to, hazardous materials or toxic substances in any form at the Project site.

§ 8.6 The Architect shall have the right to include photographic or artistic representations of the design of the Project among the Architect's promotional and professional materials. The Architect shall be given reasonable access to the completed Project to make such representations. However, the Architect's materials shall not include the Owner's confidential or proprietary information if the Owner has previously advised the Architect in writing of the specific information considered by the Owner to be confidential or proprietary.

§ 8.7 The Architect acknowledges that, except as provided by Federal Copyright law, any documents given to the Owner are subject to provisions of the Wyoming Public Records Act.

§ 8.8 The City of Cheyenne expressly reserves all immunities and defenses available under the Wyoming Governmental Claims Act, W.S. 1-39-101 et seq.

§ 8.9 The Architect agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Architect's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Architect, or its employees or subcontractors in the performance of this Agreement. The Architect acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

§ 8.10 **Notices** All notices, requests, claims, demands and other communications hereunder shall be in writing. Such notices shall be given (i) by delivery in person (ii) by a nationally recognized next day courier service, (iii) by first class, registered or certified mail, postage prepaid, (iv) by facsimile or (v) by electronic mail to the address of the party specified in this Agreement or such other address as either party may specify in writing. Notices so given shall be effective upon (i) receipt by the party to which notice is given, or (ii) on the fifth (5th) day following mailing, whichever occurs first.

This Agreement entered into as of the day and year first written above.

OWNER

CITY OF CHEYENNE, WYOMING

ARCHITECT

TDSI - THE DESIGN STUDIO, INC.

BY:

(Signature)

RICHARD L. KAYSEN, MAYOR

(Printed name and title)

(Signature)

RANDY BYERS, AIA, LEED AP+, PROJECT ARCHITECT

(Printed name and title)

(SEAL)

ATTEST:

Init.

CAROL INTLEKOFER, CITY CLERK
(Paragraphs deleted)



Init.

/

Additions and Deletions Report for AIA® Document B209™ – 2007

This Additions and Deletions Report, as defined on page 1 of the associated document, reproduces below all text the author has added to the standard form AIA document in order to complete it, as well as any text the author may have added to or deleted from the original AIA text. Added text is shown underlined. Deleted text is indicated with a horizontal line through the original AIA text.

Note: This Additions and Deletions Report is provided for information purposes only and is not incorporated into or constitute any part of the associated AIA document. This Additions and Deletions Report and its associated document were generated simultaneously by AIA software at 18:29:36 on 10/08/2013.

PAGE 1

RENOVATION & EXPANSION OF THE EXISTING CONSERVATORY / GREENHOUSE AT THE CHEYENNE BOTANIC GARDENS Cheyenne, Wyoming

...

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

...

TDSi
The Design Studio, inc.

THE OWNER'S DESIGN ARCHITECT:

(State the name and address of the Owner's Design Architect described in Section 2.1 exactly as identified in the agreement between the Owner and the Owner's Design Architect.) Architecture + Interior Design,
1906 Thomes Avenue

THE AGREEMENT

This Standard Form of Architect's Services is part of or modifies the accompanying Owner Architect Agreement (hereinafter, the Agreement) dated the ___ day of ___ in the year ___. Cheyenne, Wyoming 82001
(In words, indicate day, month and year.)

...

1 INITIAL INFORMATION GENERAL

...

ARTICLE 1 GENERAL

§ 1.1 INITIAL INFORMATION

The Architect's performance of the services set forth in this document is based upon the following information. Material changes to this information may entitle the Architect to Additional Services.

§1.1. The Owner's anticipated dates for commencement of construction and Substantial Completion of the Work are set forth below:

.1 Commencement of construction date: December 1, 2013

.2 Substantial Completion dates:

.1 Phase 2 - Construction of the Conservatory Addition: February 28, 2015

.2 Phase 3 - Renovation of, and Addition to the Existing CBG Conservatory / Greenhouse:
December 31, 2015

§ 1.2 BASIC DEFINITIONS

§ 1.2.1 THE CONTRACT DOCUMENTS

For purposes of this Agreement, the Contract Documents consist of the Owner/Contractor Agreement, Conditions of the Contract (General, Supplementary and other Conditions), Drawings, and Specifications, and other documents listed in the Agreement. The Contract Documents do not include the advertisement or invitation to bid, Instructions to Bidders, sample forms, or other information furnished by the Owner in anticipation of receiving bids or proposals.

§ 1.2.2 THE OWNER

The Owner is the person or entity identified as such in the Agreement and is referred to throughout the Contract Documents as if singular in number. The Owner shall designate in writing a representative who shall have express authority to bind the Owner with respect to all matters requiring the Owner's approval or authorization. Except as otherwise provided in Section 4.2.1, the Architect does not have such authority. The term "Owner" means the Owner or the Owner's authorized representative.

§ 1.2.3 THE WORK

For purposes of this Agreement, the term "Work" means the construction and services required by the Contract Documents, and includes all other labor, materials, equipment and services to be provided by the Contractor to fulfill the Contractor's obligations. The Work may constitute the whole or a part of the Project.

§ 1.2.3 THE PROJECT

The Project is the total construction of which the Work performed under the Contract Documents may be the whole or a part and which may include construction by the Owner and by separate contractors.

§ 1.2.4 THE DRAWINGS

The Drawings are the graphic and pictorial portions of the Contract Documents showing the design, location and dimensions of the Work, generally including plans, elevations, sections, details, schedules and diagrams.

§ 1.2.5 THE SPECIFICATIONS

The Specifications are that portion of the Contract Documents consisting of the written requirements for materials, equipment, systems, standards and workmanship for the Work, and performance of related services.

ARTICLE 1 — INITIAL INFORMATION

The Architect's performance of the services set forth in this document is based upon the following information. Material changes to this information may entitle the Architect to Additional Services.

(List below information, including conditions or assumptions, that will affect the Architect's performance.)

§ 1.2.6 INSTRUMENTS OF SERVICE

Instruments of Service are representations, in any medium of expression now known or later developed, of the tangible and intangible creative work performed by the Architect and the Architect's consultants under their respective professional services agreements. Instruments of Service may include, without limitation, studies, surveys, models, sketches, drawings, specifications, and other similar materials. Where required by Wyoming law, final Instruments of Service shall bear the seal, signature and date of the Architect and the Architect's consultants.

§ 1.3 ARCHITECT'S RESPONSIBILITIES

§ 1.3.1 The Architect shall provide the professional services as set forth in this Agreement.

§ 1.3.2 The Architect shall perform its services consistent with the professional skill and care ordinarily provided by architects practicing in the same or similar locality under the same or similar circumstances. The Architect shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project.

§ 1.3.3 The Architect shall identify a representative authorized to act on behalf of the Architect with respect to the Project.

§ 1.3.4 Except with the Owner's knowledge and consent, the Architect shall not engage in any activity, or accept any employment, interest or contribution that would reasonably appear to compromise the Architect's professional judgment with respect to this Project. By executing this Agreement, the Architect certifies, under oath, that he has not in any way received, directly or indirectly, any gratuity, kickback, or contingent fee in connection with his selection to perform the Basic Services, Additional Services, and such further services as are described in this Agreement.

§ 1.3.5 The Architect shall maintain the following insurance for the duration of this Agreement. If any of the requirements set forth below exceed the types and limits the Architect normally maintains, the Owner shall reimburse the Architect for any additional cost:

.1 General Liability:

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per claimant, \$2,000,000 per occurrence for the entire term of the contract.

.2 Automobile Liability:

For non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,00,000 per accident for the entire term of the contract.

If at any time during the term of this Agreement the Architect purchases any automobiles, the Architect's Automobile Liability insurance shall be extended to cover owned vehicles with the minimum limits stated above.

.3 Workers' Compensation:

Workers' Compensation coverage shall be in effect, as required by Wyoming law, for all employees or agents providing services under this agreement.

.4 Professional Liability:

The policy shall be a "claims made" policy with a maximum limit of liability of not less than \$500,000 per claim, with an aggregate limit of not less than \$1,000,000 per year to protect the Owner from claims arising from the Architect's negligence in the performance of duties under this Agreement. The coverage shall remain in effect for a period of five (5) years following the last date that Architect has provided services under this Agreement. In the event the Architect or the insurer terminates coverage prior to the expiration of the periods noted above, the Architect shall provide to the City advance written notification of the termination of said coverage and shall

provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Architect has provided services under this Agreement.

§ 1.3.6 The Architect shall name the Owner as an Additional Insured by endorsement on its General Liability and Automobile Liability insurance policy or policies, and shall provide the Owner with a copy of the endorsements.

§ 1.3.7 It is understood and agreed that these policies are primary and not contributory. Certificates showing proof of such insurance shall be submitted to the Owner prior to commencement of this Agreement. In the event the Architect's services extend into a future policy period, the Architect shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Architect will provide services under this Agreement;

§ 1.3.8 It shall be an affirmative obligation upon the Architect to advise the Owner's Risk Manager or designee at Fax Number (307)638-4340, e-mail btennant@cheyennecity.org, or in person at 2101 O'Neil Avenue, Room 102, Cheyenne, WY within two days of the cancellation or substantive change of any insurance policy required in this Agreement. Failure to do so shall be construed to be a breach of this Agreement.

§ 1.3.9 The Owner's failure to request or review such certificates and endorsements shall not affect the Owner's rights or the Architect's obligation hereunder.

§ 1.3.10 Any insurance company providing coverage under this agreement shall have a minimum A M Best rating of A (excellent).

1.4 SCOPE OF ARCHITECT'S BASIC SERVICES

§ 1.4.1 The Architect's Basic Services consist of those described in Article 2 and include usual and customary structural, mechanical, and electrical engineering services.

§ 1.4.1.1 The Architect shall manage the Architect's services, consult with the Owner, attend Project meetings, communicate with members of the Project team and report progress to the Owner.

§ 1.4.1.2 The Architect shall coordinate its services with those services provided by the Owner and the Owner's consultants. The Architect shall be entitled to rely on the accuracy and completeness of services and information furnished by the Owner and the Owner's consultants. The Architect shall provide prompt written notice to the Owner if the Architect becomes aware of any error, omission or inconsistency in such services or information.

§ 1.4.1.3 The Architect shall not be responsible for an Owner's directive or substitution made without the Architect's approval.

§ 1.4.1.4 The Architect shall assist the Owner in connection with the Owner's responsibility for filing documents required for the approval of governmental authorities having jurisdiction over the Project.

§ 2.1 The Architect (~~hereinafter, the Contract Administration Architect~~) shall provide Construction Contract Administration Services for the Project ~~independently of the Owner's Design Architect, who is responsible for preparing the Project Design and Contract Documents for the Project but is not a party to this Agreement.~~Project.

§ 2.2 The ~~Contract Administration Architect~~ shall administer the Contract for Construction. The ~~Contract Administration Architect~~ shall coordinate its services and those of its consultants with those services provided by the Owner and the Owner's consultants, ~~including the Owner's Design Architect.~~consultants.

§ 2.3 ~~The Contract Administration Architect shall consult with the Owner's Design Architect as required herein to perform the Construction Contract Administration Services. When the Contract Administration Architect is required to consult with the Owner's Design Architect, the Contract Administration Architect shall inform the Owner and the Owner's Design Architect of the matter and the nature of the response requested. If the Contract Administration Architect does not receive a response with reasonable promptness or is unable to agree with the response received, the Contract Administration Architect shall notify the Owner, who shall promptly (1) consult with the Owner's Design Architect and the Contract Administration Architect, (2) decide the matter, and (3) notify both the Owner's Design~~

~~Architect and the Contract Administration Architect of its decision. The Contract Administration Architect shall not be responsible for untimely performance on the part of the Owner's Design Architect. Subject to Section 3.3, the Architect's responsibility to provide the Contract Administration Services commences with Bidding or Negotiation Services and terminates on the date the Architect issues the final Certificate for Payment.~~

~~§ 2.4 Subject to Section 3.3, the Contract Administration Architect's responsibility to provide the Contract Administration Services commences with Bidding or Negotiation Services and terminates on the date the Contract Administration Architect issues the final Certificate for Payment. The Architect shall provide administration of the Contract between the Owner and the Contractor as set forth herein.. The Architect shall have the right to review the Owner's proposed Owner/Contractor Agreement prior to this project going out to Bid. If the Owner/Contractor Agreement proposed by the Owner modifies or conflicts with the Architect's responsibilities under this Agreement, the parties shall attempt to resolve any such conflicts. In the event any such conflicts cannot be resolved, either the Owner or the Architect shall have the right to withdraw from this Agreement without liability other than payment for actual work performed and expenses incurred by the Architect pursuant to Section 5.6 of this Agreement.~~

~~§ 2.5 The Contract Administration Architect shall provide administration of the Contract between the Owner and the Contractor as set forth herein and in AIA Document A201™-2007, General Conditions of the Contract for Construction. If the Owner and the Contractor modify AIA Document A201-2007, those modifications shall not affect the Contract Administration Architect's services under this Agreement unless the Owner and the Architect amend this Agreement. Architect shall advise and consult with the Owner during the provision of the Construction Contract Administration Services. The Architect shall have authority to act on behalf of the Owner only to the extent provided in this Agreement. The Architect shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work, nor shall the Architect be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Architect shall be responsible for the Architect's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for, acts or omissions of the Contractor or of any other persons or entities performing portions of the Work.~~

~~§ 2.6 The Contract Administration Architect shall advise and consult with the Owner during the provision of the Construction Contract Administration Services. The Contract Administration Architect shall have authority to act on behalf of the Owner only to the extent provided in this Agreement. The Contract Administration Architect shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work, nor shall the Contract Administration Architect be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Contract Administration Architect shall be responsible for the Contract Administration Architect's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for, acts or omissions of the Contractor or of any other persons or entities performing portions of the Work. Architect shall interpret and decide matters concerning performance under, and requirements of, the Contract Documents on written request of either the Owner or Contractor. The Architect's response to such requests shall be made in writing within any time limits agreed upon or otherwise with reasonable promptness.~~

~~§ 2.7 The Contract Administration Architect shall interpret and decide matters concerning performance under, and requirements of, the Contract Documents on written request of either the Owner or Contractor. The Contract Administration Architect's response to such requests shall be made in writing within any time limits agreed upon or otherwise with reasonable promptness. Interpretations and decisions of the Architect shall be consistent with the intent of, and reasonably inferable from, the Contract Documents. When making such interpretations and decisions, the Architect shall endeavor to secure faithful performance by both Owner and Contractor, shall not show partiality to either, and shall not be liable for the results of interpretations or decisions rendered in good faith.~~

~~§ 2.8 Interpretations and decisions of the Contract Administration Architect shall be consistent with the intent of, and reasonably inferable from, the Contract Documents. The Contract Administration Architect shall consult with the Owner's Design Architect before issuing interpretations and decisions in writing or in the form of drawings. When making such interpretations and decisions, the Contract Administration Architect shall endeavor to secure faithful performance by both Owner and Contractor, shall not show partiality to either, and shall not be liable for the results of interpretations or decisions rendered in good faith. If appropriate, the Architect shall, on the Owner's behalf, prepare, reproduce and distribute supplemental drawings, specifications and interpretations in response to requests for information by the Contractor relative to changed requirements and schedule revisions.~~

~~§ 2.9 If appropriate, the Contract Administration Architect shall, on the Owner's behalf, prepare, reproduce and distribute supplemental drawings, specifications and interpretations in response to requests for information by the Contractor relative to changed requirements and schedule revisions. The Contract Administration Architect shall consult with the Owner's Design Architect before preparing, reproducing and distributing supplemental drawings, specifications and interpretations in response to requests for information by the Contractor relative to changed requirements and schedule revisions. The Architect shall decide matters relating to aesthetic effect. Such decisions shall be final if consistent with the intent expressed in the Contract Documents.~~

~~§ 2.10 The Contract Administration Architect shall decide matters relating to aesthetic effect. The Contract Administration Architect shall consult with the Owner's Design Architect before deciding such matters. Such decisions shall be final if consistent with the intent expressed in the Contract Documents.~~

~~§ 2.11 Unless the Owner and the Contractor designate another person to serve as an Initial Decision Maker, as that term is defined in AIA Document A201-2007, the Contract Administration Architect shall render initial decisions on Claims between the Owner and Contractor as provided in the Contract Documents.~~

~~§ 2.12 Terms in this document shall have the same meaning as those in AIA Document A201-2007, General Conditions of the Contract for Construction.~~

BIDDING SERVICES

~~§ 2.12.1 The Architect shall assist the Owner in establishing a list of prospective contractors. Following the Owner's approval of the Construction Documents, and subject to the requirements of State law, the Cheyenne City Code, and the City's Purchasing Manual, the Architect shall assist the Owner in (1) obtaining competitive bids (2) confirming the responsiveness of bids or proposals; (3) determining the successful bid or proposal, if any; and (4) awarding and preparing contracts for construction.~~

§ 2.12.2 COMPETITIVE BIDDING

~~§ 2.12.2.1 Bidding Documents shall consist of bidding requirements and proposed Contract Documents.~~

~~§ 2.12.2.2 The Architect shall assist the Owner in bidding the Project by~~

- ~~.1 ensuring compliance with the requirements of State law and the Cheyenne City Code for the provision of public notice to prospective bidders, including posting Bidding Documents to a secure digital plan delivery service accessible to prospective bidders;~~
- ~~.2 organizing and conducting one (1) pre-bid conference for prospective bidders;~~
- ~~.3 preparing responses to questions from prospective bidders and providing clarifications and interpretations of the Bidding Documents to all prospective bidders in the form of addenda; and~~
- ~~.4 organizing and conducting the opening of the bids and, subsequently documenting and distributing the bidding results, as directed by the Owner.~~

~~§ 2.12.2.3 If the Bidding Documents permit substitutions, the Architect shall consider requests for substitutions and shall prepare and distribute addenda identifying approved substitutions to all prospective bidders.~~

§ 2.13 BIDDING OR NEGOTIATION SERVICES CONTRACT ADMINISTRATION SERVICES

~~§ 2.13.1 The Contract Administration Architect shall assist the Owner in establishing a list of prospective contractors. Following the Owner's approval of the Construction Documents, the Contract Administration Architect shall assist the Owner in (1) obtaining either competitive bids or negotiated proposals; (2) confirming the responsiveness of bids or proposals; (3) determining the successful bid or proposal, if any; and (4) awarding and preparing contracts for construction.~~

GENERAL

~~§ 2.13.1.1 The Architect shall provide administration of the Contract between the Owner and the Contractor as set forth below. The Architect shall have the right to review the Owner's proposed Owner/Contractor Agreement prior to this project going out to Bid. If the Owner/Contractor Agreement proposed by the Owner modifies or conflicts with the Architect's responsibilities under this Agreement, the parties shall attempt to resolve any such conflicts. In the event any such conflicts cannot be resolved, either the Owner or the Architect shall have the right to withdraw from this Agreement without liability other than payment for actual work performed and expenses incurred by the Architect pursuant to Section 5.6 of this Agreement.~~

§ 2.13.1.2 The Architect shall advise and consult with the Owner during the Construction Phase Services. The Architect shall have authority to act on behalf of the Owner only to the extent provided in this Agreement. The Architect shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work, nor shall the Architect be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Architect shall be responsible for the Architect's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for, acts or omissions of the Contractor or of any other persons or entities performing portions of the Work.

§ 2.13.1.3 Subject to Section 3.3, the Architect's responsibility to provide Construction Phase Services commences with the award of the Contract for Construction and terminates on the date the Architect issues the final Certificate for Payment.

§ 2.13.2 COMPETITIVE BIDDING/EVALUATIONS OF THE WORK

§ 2.13.2.1 Bidding Documents shall consist of bidding requirements and proposed Contract Documents. The Architect shall visit the site at intervals appropriate to the stage of construction, or as otherwise required in Section 3.3, to become generally familiar with the progress and quality of the portion of the Work completed, and to determine, in general, if the Work observed is being performed in a manner indicating that the Work, when fully completed, will be in accordance with the Contract Documents. However, the Architect shall not be required to make exhaustive or continuous on-site inspections to check the quality or quantity of the Work. On the basis of the site visits, the Architect shall keep the Owner reasonably informed about the progress and quality of the portion of the Work completed, and report to the Owner (1) known deviations from the Contract Documents and from the most recent construction schedule submitted by the Contractor, and (2) defects and deficiencies observed in the Work.

§ 2.13.2.2 The Contract Administration Architect shall assist the Owner in bidding the Project by

- .1 — procuring the reproduction of Bidding Documents for distribution to prospective bidders;
 - .2 — distributing the Bidding Documents to prospective bidders, requesting their return upon completion of the bidding process and maintaining a log of distribution and retrieval and the amounts of deposits, if any, received from and returned to prospective bidders;
 - .3 — organizing and conducting a pre bid conference for prospective bidders;
 - .4 — preparing responses to questions from prospective bidders and providing clarifications and interpretations of the Bidding Documents to all prospective bidders in the form of addenda; and
 - .5 — organizing and conducting the opening of the bids and, subsequently documenting and distributing the bidding results, as directed by the Owner.
- Architect has the authority to reject Work that does not conform to the Contract Documents. Whenever the Architect considers it necessary or advisable, the Architect shall have the authority to require inspection or testing of the Work in accordance with the provisions of the Contract Documents, whether or not such Work is fabricated, installed or completed. However, neither this authority of the Architect nor a decision made in good faith either to exercise or not to exercise such authority shall give rise to a duty or responsibility of the Architect to the Contractor, Subcontractors, material and equipment suppliers, their agents or employees or other persons or entities performing portions of the Work.

§ 2.13.2.3 If the Bidding Documents permit substitutions, the Contract Administration Architect, in consultation with the Owner's Design Architect, shall consider requests for substitutions and shall prepare and distribute addenda identifying approved substitutions to all prospective bidders.

§ 2.13.3 NEGOTIATED PROPOSALS

§ 2.13.3.1 Proposal Documents shall consist of proposal requirements and proposed Contract Documents.

§ 2.13.3.2 The Contract Administration Architect shall assist the Owner in obtaining proposals by

- .1 — procuring the reproduction of Proposal Documents for distribution to prospective contractors and requesting their return upon completion of the negotiation process;
- .2 — organizing and participating in selection interviews with prospective contractors; and
- .3 — participating in negotiations with prospective contractors, and subsequently preparing a summary report of the negotiation results, as directed by the Owner.

~~§ 2.13.3.3~~ If the Proposal Documents permit substitutions, the Contract Administration Architect, in consultation with the Owner's Design Architect, shall consider requests for substitutions and shall prepare and distribute addenda identifying approved substitutions to all prospective contractors.

§ 2.14 CONTRACT ADMINISTRATION SERVICES~~CERTIFICATES FOR PAYMENTS TO CONTRACTOR~~

~~§ 2.14.1~~ **EVALUATIONS OF THE WORK** The Architect shall review and certify the amounts due the Contractor and shall issue Certificates for Payment in such amounts.. The Architect's certification for payment shall constitute a representation to the Owner, based on the Architect's evaluation of the Work as provided in Section 2.13.2 and on the data comprising the Contractor's Application for Payment, that, to the best of the Architect's knowledge, information and belief, the Work has progressed to the point indicated and that the quality of the Work is in accordance with the Contract Documents. The foregoing representations are subject (1) to an evaluation of the Work for conformance with the Contract Documents upon Substantial Completion, (2) to results of subsequent tests and inspections, and (3) to correction of minor deviations from the Contract Documents prior to completion.

~~§ 2.14.1.1~~ The Contract Administration Architect shall visit the site at intervals appropriate to the stage of construction, or as otherwise required in Section 3.3, to become generally familiar with the progress and quality of the portion of the Work completed, and to determine, in general, if the Work observed is being performed in a manner indicating that the Work, when fully completed, will be in accordance with the Contract Documents. However, the Contract Administration Architect shall not be required to make exhaustive or continuous on-site inspections to check the quality or quantity of the Work. On the basis of the site visits, the Contract Administration Architect shall keep the Owner reasonably informed about the progress and quality of the portion of the Work completed, and report to the Owner (1) known deviations from the Contract Documents and from the most recent construction schedule submitted by the Contractor, and (2) defects and deficiencies observed in the Work.

~~§ 2.14.1.2~~ The Contract Administration Architect has the authority to reject Work that does not conform to the Contract Documents. Whenever the Contract Administration Architect considers it necessary or advisable, the Contract Administration Architect shall have the authority to require inspection or testing of the Work in accordance with the provisions of the Contract Documents, whether or not such Work is fabricated, installed or completed. However, neither this authority of the Contract Administration Architect nor a decision made in good faith either to exercise or not to exercise such authority shall give rise to a duty or responsibility of the Contract Administration Architect to the Contractor, Subcontractors, material and equipment suppliers, their agents or employees or other persons or entities performing portions of the Work.

~~§ 2.14.2~~ The issuance of a Certificate for Payment shall not be a representation that the Architect has (1) made exhaustive or continuous on-site inspections to check the quality or quantity of the Work, (2) reviewed construction means, methods, techniques, sequences or procedures, (3) reviewed copies of requisitions received from Subcontractors and material suppliers and other data requested by the Owner to substantiate the Contractor's right to payment, or (4) ascertained how or for what purpose the Contractor has used money previously paid on account of the Contract Sum.

~~§ 2.14.3~~ The Architect shall maintain a record of Applications and Certificates for Payment.

§ 2.15 CERTIFICATES FOR PAYMENTS TO CONTRACTORS~~SUBMITTALS~~

~~§ 2.15.1~~ The Contract Administration Architect shall review and certify the amounts due the Contractor and shall issue Certificates for Payment in such amounts. The Contract Administration Architect shall consult with the Owner's Design Architect before issuing Certificates for Payment. The Contract Administration Architect's certification for payment shall constitute a representation to the Owner, based on the Contract Administration Architect's evaluation of the Work as provided in Section 2.14.1 and on the data comprising the Contractor's Application for Payment, that, to the best of the Contract Administration Architect's knowledge, information and belief, the Work has progressed to the point indicated and that the quality of the Work is in accordance with the Contract Documents. The foregoing representations are subject (1) to an evaluation of the Work for conformance with the Contract Documents upon Substantial Completion, (2) to results of subsequent tests and inspections, (3) to correction of minor deviations from the Contract Documents prior to completion, and (4) to specific qualifications expressed by the Contract Administration Architect. Architect shall review and approve the Contractor's submittal schedule and shall not unreasonably delay or withhold approval. The Architect's action in reviewing submittals shall be taken in accordance with the approved submittal schedule or, in the absence of an approved submittal schedule, with reasonable promptness, while allowing sufficient time in the Architect's professional judgment to permit adequate review.

§ 2.15.2 The issuance of a Certificate for Payment shall not be a representation that the Contract Administration Architect has (1) made exhaustive or continuous on-site inspections to check the quality or quantity of the Work, (2) reviewed. In accordance with the Architect-approved submittal schedule, the Architect shall review and approve or take other appropriate action upon the Contractor's Submittals such as Shop Drawings, Product Data and Samples, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents. Review of such submittals is not for the purpose of determining the accuracy and completeness of other information such as dimensions, quantities, and installation or performance of equipment or systems, which are the Contractor's responsibility. The Architect's review shall not constitute approval of safety precautions or, unless otherwise specifically stated by the Contract Administration Architect, of any construction means, methods, techniques, sequences or procedures, (3) reviewed copies of requisitions received from Subcontractors and material suppliers and other data requested by the Owner to substantiate the Contractor's right to payment, or (4) ascertained how or for what purpose the Contractor has used money previously paid on account of the Contract Sum. procedures of construction, fabrication, transportation or installation. The Architect's approval of a specific item shall not indicate approval of an assembly of which the item is a component.

§ 2.15.3 The Contract Administration Architect shall maintain a record of Applications and Certificates for Payment. If the Contract Documents specifically require the Contractor to provide professional design services or certifications by a design professional related to systems, materials or equipment, the Architect shall specify the appropriate performance and design criteria that such services must satisfy. The Architect shall review Shop Drawings and other Submittals related to the Work designed or certified by the design professional retained by the Contractor that bear such professional's seal and signature when submitted to the Contract Administration Architect. The Architect shall be entitled to rely upon the adequacy, accuracy and completeness of the services, certifications and approvals performed or provided by such design professionals.

§ 2.15.4 Subject to Section 3.3, the Architect shall review and respond to requests for information about the Contract Documents. The Architect shall set forth in the Contract Documents the requirements for requests for information. Requests for information shall include, at a minimum, a detailed written statement that indicates the specific Drawings or Specifications in need of clarification and the nature of the clarification requested. The Architect's response to such requests shall be made in writing within any time limits agreed upon, or otherwise with reasonable promptness. If appropriate, the Architect shall prepare and issue supplemental Drawings and Specifications in response to requests for information.

§ 2.15.5 The Architect shall maintain a record of submittals and copies of submittals supplied by the Contractor in accordance with the requirements of the Contract Documents.

§ 2.16 SUBMITTALS CHANGES IN THE WORK

§ 2.16.1 The Architect shall review and approve the Contractor's submittal schedule and shall not unreasonably delay or withhold approval. The Architect's action in reviewing submittals shall be taken in accordance with the approved submittal schedule or, in the absence of an approved submittal schedule, with reasonable promptness, while allowing sufficient time in the Architect's professional judgment to permit adequate review. may authorize minor changes in the Work not involving an adjustment in Contract Sum or an extension of the Contract Time that are consistent with the intent of the Contract Documents.

§ 2.16.2 In accordance with the Contract Administration Architect approved submittal schedule, the Contract Administration Architect shall review and approve or take other appropriate action upon the Contractor's Submittals such as Shop Drawings, Product Data and Samples, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents. Review of such submittals is not for the purpose of determining the accuracy and completeness of other information such as dimensions, quantities, and installation or performance of equipment or systems, which are the Contractor's responsibility. The Contract Administration Architect's review shall not constitute approval of safety precautions or, unless otherwise specifically stated by the Contract Administration Architect, of any construction means, methods, techniques, sequences or procedures of construction, fabrication, transportation or installation. The Contract Administration Architect's approval of a specific item shall not indicate approval of an assembly of which the item is a component. The Architect shall prepare Change Orders and Construction Change Directives, of reasonable quantity, for the Owner's approval and execution in accordance with the Contract Documents and the applicable laws and ordinances.

~~§ 2.16.3 If the Contract Documents specifically require the Contractor to provide professional design services or certifications by a design professional related to systems, materials or equipment, the Contract Administration Architect shall specify the appropriate performance and design criteria that such services must satisfy. The Contract Administration Architect shall review Shop Drawings and other Submittals related to the Work designed or certified by the design professional retained by the Contractor that bear such professional's seal and signature when submitted to the Contract Administration Architect. The Contract Administration Architect shall be entitled to rely upon the adequacy, accuracy and completeness of the services, certifications and approvals performed or provided by such design professionals. The Architect shall maintain records relative to changes in the Work.~~

~~§ 2.16.4 Subject to Section 3.2, the Contract Administration Architect shall review and respond to requests for information about the Contract Documents. The Contract Administration Architect shall set forth in the Contract Documents the requirements for requests for information. Requests for information shall include, at a minimum, a detailed written statement that indicates the specific Drawings or Specifications in need of clarification and the nature of the clarification requested. The Contract Administration Architect's response to such requests shall be made in writing within any time limits agreed upon, or otherwise with reasonable promptness. If appropriate, the Contract Administration Architect shall prepare and issue supplemental Drawings and Specifications in response to requests for information.~~

~~§ 2.16.5 The Contract Administration Architect shall maintain a record of submittals and copies of submittals supplied by the Contractor in accordance with the requirements of the Contract Documents. Upon the request of the Owner's Design Architect, the Contract Administration Architect shall forward designated Contractor's submittals to the Owner's Design Architect for review and approval.~~

~~§ 2.17 CHANGES IN THE WORK~~**PROJECT COMPLETION**

~~§ 2.17.1 The Contract Administration Architect may authorize minor changes in the Work not involving an adjustment in Contract Sum or an extension of the Contract Time that are consistent with the intent of the Contract Documents. The Contract Administration Architect shall prepare Change Orders and Construction Change Directives for the Owner's approval and execution in accordance with the Contract Documents. Architect shall conduct inspections to determine the date or dates of Substantial Completion and the date of final completion; issue Certificates of Substantial Completion; receive from the Contractor and forward to the Owner for the Owner's review and records, written warranties and related documents required by the Contract Documents and assembled by the Contractor; and issue a final Certificate for Payment based upon a final inspection indicating the Work complies with the requirements of the Contract Documents~~

~~§ 2.17.2 The Contract Administration Architect shall maintain records relative to changes in the Work. Architect's inspections shall be conducted with the Owner to check conformance of the Work with the requirements of the Contract Documents and to verify the accuracy and completeness of the list submitted by the Contractor of Work to be completed or corrected.~~

~~§ 2.18 PROJECT COMPLETION~~

~~§ 2.18.1 The Contract Administration Architect shall conduct inspections to determine the date or dates of Substantial Completion and the date of final completion; issue Certificates of Substantial Completion; receive from the Contractor and forward to the Owner for the Owner's review and records, written warranties and related documents required by the Contract Documents and assembled by the Contractor; and issue a final Certificate for Payment based upon a final inspection indicating the Work complies with the requirements of the Contract Documents. The Contract Administration Architect shall consult with the Owner's Design Architect before making such determinations or issuing such certificates.~~

~~§ 2.18.2 The Contract Administration Architect's inspections shall be conducted with the Owner and, when directed by the Owner, the Owner's Design Architect to check conformance of the Work with the requirements of the Contract Documents and to verify the accuracy and completeness of the list submitted by the Contractor of Work to be completed or corrected.~~

~~§ 2.18.3 When the Work is found to be substantially complete, the Contract Administration Architect shall inform the Owner about the balance of the Contract Sum remaining to be paid the Contractor, including the amount to be retained from the Contract Sum, if any, for final completion or correction of the Work.~~

~~§ 2.18.4~~ The Contract Administration Architect shall forward to the Owner the following information received from the Contractor: (1) consent of surety or sureties, if any, to reduction in or partial release of retainage or the making of final payment (2) affidavits, receipts, releases and waivers of liens or bonds indemnifying the Owner against liens, and (3) any other documentation required of the Contractor under the Contract Documents.

§ 2.17.3 When the Work is found to be substantially complete, the Architect shall inform the Owner about the balance of the Contract Sum remaining to be paid the Contractor, including the amount to be retained from the Contract Sum, if any, for final completion or correction of the Work.

§ 2.17.4 The Architect shall forward to the Owner the following information received from the Contractor: (1) consent of surety or sureties, if any, to reduction in or partial release of retainage or the making of final payment (2) affidavits, receipts, releases and waivers of liens or bonds indemnifying the Owner against liens, and (3) any other documentation required of the Contractor under the Contract Documents.

§ 3.1 In addition to the Construction Contract Administration Services described above, the ~~Contract Administration~~ Architect shall provide other services only if specifically designated below. The ~~Contract Administration~~ Architect shall perform such other services in accordance with a service description provided in Section 3.2 or attached as an exhibit to this services document.

(Designate the other services the Contract Administration Architect shall provide in the second column of the table below. In the third column indicate whether the service description is located in Section 3.2, or in an exhibit attached to this services document. If in an exhibit, identify the exhibit.)

PAGE 8

<u>§ 3.1.1</u> Special Bidding or Negotiation	<u>Not Provided</u>	<u>Not Applicable</u>
<u>§ 3.1.2</u> On-Site Project Representation(B207 TM 2008)	<u>Not Provided</u>	<u>Not Applicable</u>
§ 3.1.3 On-Site Contract Administration Services		
§ 3.1.4 Schedule Development and Monitoring		
§ 3.1.5 Value Analysis (B204 TM 2007)		
§ 3.1.6 Detailed Cost Estimating		
§ 3.1.7 <u>§ 3.1.3</u> Start-up Assistance	<u>Not Provided</u>	<u>Not Applicable</u>
<u>§ 3.1.4</u> Commissioning of Mechanical and Electrical Systems	<u>Not Provided at This Time; May Be Added as an Additional Service Later</u>	<u>Not Applicable</u>
§ 3.1.8 Commissioning (B211 TM 2007)		
§ 3.1.9 <u>§ 3.1.5</u> Facility Support Services(B210 TM 2007)	<u>Not Provided</u>	<u>Not Applicable</u>
§ 3.1.10 <u>§ 3.1.6</u> Post-Contract Evaluation	<u>Not Provided</u>	<u>Not Applicable</u>
<u>§ 3.1.7</u> Record Drawing Services	<u>Architect</u>	<u>3.2.1.1</u>
§ 3.1.11 Tenant Related Services		
<u>§ 3.1.8</u> Warranty Review	<u>Architect</u>	<u>3.2.1.2</u>
<u>§ 3.1.9</u> Procurement and Installation Assistance for Furniture, Furnishings and Equipment (FF&E)	<u>Not Provided at This Time; May Be Added as an Additional Service Later</u>	<u>Not Applicable</u>
<u>§ 3.1.10</u> Other Services	<u>Not Provided at This Time; May Be Added as an Additional Service Later</u>	<u>Not Applicable</u>

§ 3.2 ~~Insert a description of each designated Additional Service the Contract Administration Architect shall provide if not further described in an exhibit attached to this document.~~ **DESIGNATED ADDITIONAL SERVICES**

3.2.1 POST-CONTRACT SERVICES

§ 3.2.1 The Architect shall provide Post-Contract services as set forth below.

.1 Record Drawing Services consisting of:

- .1 Making arrangements for obtaining from Contractor(s) information in the form of marked-up prints, drawings and other data certified by them on changes made during performance of the Work
- .2 Review of general accuracy of information submitted and certified by the Contractor(s)
- .3 Preparation of record drawings, based on certified information furnished by the Contractor(s)
- .4 Transmittal of record drawings and general data, appropriately identified, to the Owner and others as directed.

.2 Warranty Review consisting of:

- .1 Consultation and recommendation to the Owner during the duration of warranties in connection with inadequate performance of materials, systems and equipment under warranty
- .2 Inspection(s) prior to expiration of the warranty period(s) to ascertain adequacy of performance of materials, systems and equipment
- .3 Documenting defects or deficiencies and assisting the Owner in preparing instruction to the Contractor(s) for correction of noted defects.

§ 3.3 Additional Services authorized in writing by the Owner, may be provided after execution of this Agreement, without invalidating the Agreement. Except for services required due to the fault of the ~~Contract Administration~~ Architect, any Additional Services authorized in writing by the Owner and provided in accordance with this Section 3.3 shall entitle the ~~Contract Administration~~ Architect to compensation pursuant to Section 5.3 and an appropriate adjustment in the ~~Contract Administration~~ Architect's schedule.

§ 3.3.1 Upon recognizing the need to perform the following Additional Services, the ~~Contract Administration~~ Architect shall notify the Owner with reasonable promptness and explain the facts and circumstances giving rise to the need. The ~~Contract Administration~~ Architect shall not proceed to provide the following services until the ~~Contract Administration~~ Architect receives the Owner's written authorization:

PAGE 9

- .4 Preparation for, and attendance at a dispute resolution proceeding or legal proceeding, except where the ~~Contract Administration~~ Architect is party thereto;

...

- .7 Assistance to the Initial Decision Maker, if other than the ~~Contract Administration~~ Architect.

§ 3.3.2 To avoid delay in construction, the ~~Contract Administration~~ Architect shall provide the following Additional Services, notify the Owner ~~with reasonable promptness, in writing, within 48 hours,~~ and explain the facts and circumstances giving rise to the need. If the Owner subsequently determines that all or parts of those services are not required, the Owner shall give ~~prompt written notice to the Contract Administration Architect,~~ written notice to the Architect within 48 hours of receipt of the Architect's notice, and the Owner shall have no further obligation to compensate the ~~Contract Administration~~ Architect for those services:

- .1 Reviewing a Contractor's submittal out of sequence from the submittal schedule agreed to by the ~~Contract Administration~~ Architect;

...

- .4 Evaluating an extensive number of ~~Claims as the Initial Decision Maker,~~ Claims;

...

- .6 To the extent the ~~Contract Administration~~ Architect's Basic Services are affected, providing Construction Phase Services 60 days after (1) the date of Substantial Completion of the Work or (2) the anticipated date of Substantial Completion identified in Initial Information, whichever is earlier.

§ 3.3.3 The ~~Contract Administration~~ Architect shall provide Contract Administration or Post-Contract Services exceeding the limits set forth below as Additional Services. When the limits below are reached, the ~~Contract Administration~~ Architect shall notify the Owner:

- .1 ~~() reviews~~ 1 (One) review of each Shop Drawing, Product Data item, sample and similar submittal of the Contractor
- .2 ~~() the following approximate number of visits to the site by the Contract Administration Architect and the Architect's Consultants, over the duration of the Project during construction~~
 - a. Architect.....174
 - b. Civil Engineer..... 6
 - c. Landscape Architect..... 8
 - d. Irrigation Consultant 2
 - e. Structural Engineer 12
 - f. Mechanical Engineer..... 40
 - g. Electrical Engineer 28
 - h. Glasshouse Consultant 2
- .3 1 (One) inspection for any portion of the Work to determine whether such portion of the Work is substantially complete in accordance with the requirements of the Contract Documents
- .4 ~~() inspections~~ 1 (One) inspection for any portion of the Work to determine final completion
- .5 2 (Two) inspections prior to expiration of the warranty period(s) to ascertain adequacy of performance of materials, systems and equipment.

PAGE 10

§ 4.1 The Owner shall ~~provide the Contract Administration Architect with a complete set of Contract Documents and shall obtain from the Owner's Design Architect the necessary license to permit the Contract Administration Architect to reproduce the Owner's Design Architect's Instruments of Service and to use them in performing the Construction Contract Administration Services. The Owner shall indemnify the Contract Administration Architect for any copyright claims arising from the Contract Administration Architect's use of the Owner's Design Architect's Instruments of Service while performing the Construction Contract Administration Services.~~ identify a representative authorized to act on the Owner's behalf with respect to the Project. The Owner shall render decisions and approve the Architect's submittals in a timely manner in order to avoid unreasonable delay in the orderly and sequential progress of the Architect's services.

§ 4.2 ~~The Owner shall furnish surveys to describe physical characteristics, legal limitations and utility locations for the site of the Project, and written legal description of the site. The surveys and legal information shall include, as applicable, grades and lines of streets, alleys, pavements and adjoining property and structures; adjacent drainage; rights of way, restrictions, easements, encroachments, zoning, deed restrictions, boundaries and contours of the site; locations, dimensions, and necessary data with respect to existing buildings, other improvements and trees; and information concerning available utility services and lines, both public and private, above and below grade, including inverts and depths. All information on the survey shall be referenced to a Project benchmark. Unless otherwise provided for under this Agreement, the Owner shall provide information in a timely manner regarding requirements for and limitations on the Project, including a written program which shall set forth the Owner's objectives, schedule, constraints and criteria, including space requirements and relationships, flexibility, expandability, special equipment, systems and site requirements. Within 15 days after receipt of a written request from the Architect, the Owner shall furnish the requested information as necessary and relevant for the Architect to carry out his duties.~~

§ 4.3 ~~The Owner shall furnish services of geotechnical engineers and construction testing services, which may include but are not limited to test borings, test pits, determinations of soil bearing values, percolation tests, evaluations of hazardous materials, ground corrosion tests and resistivity tests, including necessary operations for anticipating subsoil conditions, with reports and appropriate recommendations. Subject to the requirements of the Owner's Purchasing Manual, and subject to the approval of the Governing Body of the City of Cheyenne when required by Cheyenne City Code, the Owner shall furnish surveys to describe physical characteristics, legal limitations and utility~~

locations for the site of the Project, and written legal description of the site. The surveys and legal information shall include, as applicable, grades and lines of streets, alleys, pavements and adjoining property and structures; adjacent drainage; rights-of-way, restrictions, easements, encroachments, zoning, deed restrictions, boundaries and contours of the site; locations, dimensions, and necessary data with respect to existing buildings, other improvements and trees; and information concerning available utility services and lines, both public and private, above and below grade, including inverts and depths. All information on the survey shall be referenced to a Project benchmark.

§ 4.4 Except when direct communications have been specially authorized, the Owner shall endeavor to communicate with the Contractor through the Contract Administration Architect about matters arising out of or relating to the Contract Documents. The Owner shall notify the Contract Administration Architect of any direct communication between the Owner and the Contractor. Communications by and with the Contract Administration Architect's consultants shall be through the Contract Administration Architect. Subject to the requirements of the Owner's Purchasing Manual, and subject to the approval of the Governing Body of the City of Cheyenne when required by Cheyenne City Code, the Owner shall furnish services of geotechnical engineers and construction testing services, which may include but are not limited to test borings, test pits, determinations of soil bearing values, percolation tests, evaluations of hazardous materials, ground corrosion tests and resistivity tests, including necessary operations for anticipating subsoil conditions, with reports and appropriate recommendations.

§ 4.5 The Owner shall furnish tests, inspections and reports required by law or the Contract Documents, such as structural, mechanical, and chemical tests, tests for air and water pollution, and tests for hazardous materials. Except when direct communications have been specially authorized, the Owner shall endeavor to communicate with the Contractor through the Architect about matters arising out of or relating to the Contract Documents. The Owner shall notify the Architect of any direct communication between the Owner and the Contractor. Communications by and with the Architect's consultants shall be through the Contract Administration Architect.

§ 4.6 For coordination purposes, the Owner shall provide the Contract Administration Architect with a copy of the agreement between the Owner and the Owner's Design Architect. Subject to the requirements of the Owner's Purchasing Manual, and subject to the approval of the Governing Body of the City of Cheyenne when required by Cheyenne City Code, the Owner shall furnish tests, inspections and reports required by law or the Contract Documents, such as structural, mechanical, and chemical tests, tests for air and water pollution, and tests for hazardous materials. The Architect shall notify the Owner in writing of tests required by law, or that he may become aware are recommended or required due to the discovery of hazardous materials.

§ 4.7 The Owner shall furnish the services and timely performance of the Owner's Design Architect for the benefit of the Contract Administration Architect in performing the Construction Contract Administration Services, provide the Architect access to the Project site prior to commencement of the Work and shall obligate the Contractor to provide the Architect access to the Work wherever it is in preparation or progress.

§ 4.8 The Owner shall provide the Contract Administration Architect access to the Project site prior to commencement of the Work and shall obligate the Contractor to provide the Contract Administration Architect access to the Work wherever it is in preparation or progress. Before executing the Contract for Construction, the Owner shall coordinate the Architect's duties and responsibilities set forth in the Contract for Construction with the Architect's services set forth herein. The Owner shall provide the Architect a copy of the executed agreement between the Owner and Contractor, including the General Conditions of the Contract for Construction.

~~§ 4.9 Before executing the Contract for Construction, the Owner shall coordinate the Architect's duties and responsibilities set forth in the Contract for Construction with the Contract Administration Architect's services set forth herein. The Owner shall provide the Contract Administration Architect a copy of the executed agreement between the Owner and Contractor, including the General Conditions of the Contract for Construction. The Owner shall coordinate the services of its own consultants with those services provided by the Architect. Upon the Architect's request, the Owner shall furnish copies of the scope of services in the contracts between the Owner and the Owner's consultants. If at any time during this Project the Architect believes that services of consultants other than those designated in this Agreement are reasonably required by the scope of the Project, the Architect shall provide a written request to the Owner for such services, shall demonstrate that they are reasonably required by the scope of the Project, and shall inform the Owner of the consequences of not having those services provided on the Project. The Owner shall consider the Architect's request and shall furnish services of the consultants required, shall authorize the Architect to furnish them as an Additional Service, or shall inform the Architect in writing of their decision otherwise. The Owner shall require that its consultants maintain professional liability insurance as appropriate to the services provided. Nothing in this section shall be construed as imposing an obligation on the Owner to retain consultants of any type.~~

§ 4.10 The Owner shall provide prompt written notice to the Architect if the Owner becomes aware of any fault or defect in the Project, including errors, omissions or inconsistencies in the Architect's Instruments of Service.

§ 4.11 Except as otherwise provided in this Agreement, or when direct communications have been specially authorized, the Owner shall endeavor to communicate with the Contractor and the Architect's consultants through the Architect about matters arising out of or relating to the Contract Documents. The Owner shall promptly notify the Architect of any direct communications that may affect the Architect's services.

PAGE 11

~~§ 5.1 For the Contract Administration Architect's Services described under Article 2, the Owner shall compensate the Contract Administration Architect as follows:~~

...

<u>.1 Bidding Services</u>	<u>\$35,000</u>	<u>plus reimbursable expenses</u>
<u>.2 Contract Administration Services</u>	<u>\$721,000</u>	<u>plus reimbursable expenses</u>
<u>.3 Post-Contract Services</u>	<u>\$19,000</u>	<u>plus reimbursable expenses</u>
<u>.4 Total Contract Amount</u>	<u>\$775,000</u>	<u>plus reimbursable expenses</u>

...

~~§ 5.2 For Additional Services designated in Section 3.1, the Owner shall compensate the Contract Administration Architect as follows:~~

...

Not Applicable

~~§ 5.3 For Additional Services that may arise during the course of the Project, including those under Section 3.3, the Owner shall compensate the Contract Administration Architect as follows:~~

...

Based upon the hourly rates of the Architect and the Architect's consultants shown in Attachment A hereto, or a mutually negotiated stipulated sum

~~§ 5.4 Compensation for Additional Services of the Contract Administration Architect's consultants when not included in Section 5.2 or 5.3, shall be the amount invoiced to the Architect plus percent (—%), or as otherwise stated below:~~

Ten Percent percent (10 %).

§ 5.5 COMPENSATION FOR REIMBURSABLE EXPENSES

§ 5.5.1 Reimbursable Expenses are in addition to compensation for Basic and Additional Services and include expenses incurred by the Architect and the Architect's consultants directly related to the Project, as follows:

- .1** Transportation and authorized out-of-town travel and subsistence;
- .2** Long distance services, dedicated data and communication services, teleconferences, Project Web sites, and extranets;
- .3** Fees paid for securing approval of authorities having jurisdiction over the Project;
- .4** Printing, reproductions, plots, standard form documents;
- .5** Postage, handling and delivery;
- .6** Expense of overtime work requiring higher than regular rates, if authorized in advance by the Owner;
- .7** Renderings, models, mock-ups, professional photography, and presentation materials requested by the Owner;
- .8** Architect's consultant's expense of professional liability insurance dedicated exclusively to this Project, or the expense of additional insurance coverage or limits if the Owner requests such insurance in excess of that normally carried by the Architect's consultants;
- .9** All taxes levied on professional services and on reimbursable expenses;
- .10** Project Information Management Software (Newforma Project Cloud); and
- .11** Other similar Project-related expenditures.

§ 5.5.2 For Reimbursable Expenses the compensation shall be the expenses incurred by the Architect and the Architect's consultants plus Ten percent (10.00 %) of the expenses incurred.

§ 5.5.3 For Reimbursable Expenses incurred by the Architect, and the Architect's consultants, utilizing their office equipment and other resources shall be billed at the rates shown on Attachment A hereto.

§ 5.6 PAYMENTS TO THE ARCHITECT

§ 5.6.1 Initial Payment – No Initial Payment will be required.

§ 5.6.2 Unless otherwise agreed, payments for services shall be made monthly in proportion to services performed. Payments are due and payable upon presentation of the Architect's invoice. Amounts unpaid Sixty (60) days after the invoice date shall bear interest at the rate entered below, or in the absence thereof at the legal rate prevailing from time to time at the principal place of business of the Architect.

Wall Street Journal Prime Rate, per annum, up to a maximum of six and one half percent (6.5%) per annum

§ 5.6.3 The Owner shall not withhold amounts from the Architect's compensation to impose a penalty or liquidated damages on the Architect, or to offset sums requested by or paid to contractors for the cost of changes in the Work unless the Architect agrees or has been found liable for the amounts in a binding dispute resolution proceeding.

§ 5.6.4 Records of Reimbursable Expenses, expenses pertaining to Additional Services, and services performed on the basis of hourly rates shall be available to the Owner at mutually convenient times.

ARTICLE 6 CLAIMS AND DISPUTES

§ 6.1 GENERAL

§ 6.1.1 The Owner and Architect shall commence all claims and causes of action, whether in contract, tort, or otherwise, against the other arising out of or related to this Agreement in accordance with the requirements of Wyoming law. The Owner and Architect waive all claims and causes of action not commenced in accordance with this Section 6.1.1.

§ 6.1.2 The Architect and Owner do not waive consequential damages for claims, disputes or other matters in question arising out of or relating to this Agreement, including consequential damages due to either party's termination of this Agreement.

§ 6.2 MEDIATION

§ 6.2.1 Any claim, dispute or other matter in question arising out of or related to this Agreement shall be subject to mediation as a condition precedent to binding dispute resolution.

§ 6.2.2 The Owner and Architect shall endeavor to resolve claims, disputes and other matters in question between them by mediation. A request for mediation shall be made in writing, and delivered to the other party to the Agreement.. The request may be made concurrently with the filing of a complaint , in such event, mediation shall proceed in advance of further proceedings, which shall be stayed pending mediation for a period of 60 days from the date of filing, unless stayed for a longer period by agreement of the parties or court order.

§ 6.2.3 The parties shall share the mediator's fee and any filing fees equally. The mediation shall be held in the place where the Project is located, unless another location is mutually agreed upon. Agreements reached in mediation shall be enforceable as settlement agreements in any court having jurisdiction thereof.

§ 6.2.4 If the parties do not resolve a dispute through mediation pursuant to this Section 8.2, the method of binding dispute resolution shall be litigation in a court of competent jurisdiction.

ARTICLE 7 TERMINATION OR SUSPENSION

§ 7.1 If the Owner fails to make payments to the Architect in accordance with this Agreement, such failure shall be considered substantial nonperformance and cause for termination or, at the Architect's option, cause for suspension of performance of services under this Agreement. If the Architect elects to suspend services, the Architect shall give seven days' written notice to the Owner before suspending services. In the event of a suspension of services, the Architect shall have no liability to the Owner for delay or damage caused the Owner because of such suspension of services. Before resuming services, the Architect shall be paid all sums due prior to suspension and any expenses incurred in the interruption and resumption of the Architect's services. The Architect's fees for the remaining services and the time schedules shall be equitably adjusted.

§ 7.2 If the Owner suspends the Project, the Architect shall be compensated for services performed prior to notice of such suspension. When the Project is resumed, the Architect shall be compensated for expenses incurred in the interruption and resumption of the Architect's services. The Architect's fees for the remaining services and the time schedules shall be equitably adjusted.

§ 7.3 If the Owner suspends the Project for more than 90 cumulative days for reasons other than the fault of the Architect, the Architect may terminate this Agreement by giving not less than seven days' written notice.

§ 7.4 Either party may terminate this Agreement upon not less than seven days' written notice should the other party fail substantially to perform in accordance with the terms of this Agreement through no fault of the party initiating the termination.

§ 7.5 The Owner may terminate this Agreement upon not less than seven days' written notice to the Architect for the Owner's convenience and without cause.

§ 7.6 In the event of termination not the fault of the Architect, the Architect shall be compensated for services performed prior to termination, together with Reimbursable Expenses then due.

ARTICLE 8 SPECIAL TERMS AND CONDITIONS

Special terms and conditions that modify this Standard Form of Architect's Services: Construction Contract Administration, if any, are as follows:

§ 8.1 GOVERNING LAW, JURISDICTION and VENUE

§ 8.1.1 The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

§ 8.2 The Owner and Architect, respectively, bind themselves, their agents, successors, assigns and legal representatives to this Agreement. Neither the Owner nor the Architect shall assign this Agreement without the written consent of the other, except that the Owner may assign this Agreement to a lender providing financing for the Project if the lender agrees to assume the Owner's rights and obligations under this Agreement.

§ 8.3 If the Owner requests the Architect to execute certificates, the proposed language of such certificates shall be submitted to the Architect for review at least 14 days prior to the requested dates of execution. If the Owner requests the Architect to execute consents reasonably required to facilitate assignment to a lender, the Architect shall execute all such consents that are consistent with this Agreement, provided the proposed consent is submitted to the Architect for review at least 14 days prior to execution. The Architect shall not be required to execute certificates or consents that would require knowledge, services or responsibilities beyond the scope of this Agreement.

§ 8.4 Nothing contained in this Agreement shall create a contractual relationship with or a cause of action in favor of a third party against either the Owner or Architect.

§ 8.5 Unless otherwise required in this Agreement, the Architect shall have no responsibility for the discovery, presence, handling, removal or disposal of, or exposure of persons to, hazardous materials or toxic substances in any form at the Project site.

§ 8.6 The Architect shall have the right to include photographic or artistic representations of the design of the Project among the Architect's promotional and professional materials. The Architect shall be given reasonable access to the completed Project to make such representations. However, the Architect's materials shall not include the Owner's confidential or proprietary information if the Owner has previously advised the Architect in writing of the specific information considered by the Owner to be confidential or proprietary.

§ 8.7 The Architect acknowledges that, except as provided by Federal Copyright law, any documents given to the Owner are subject to provisions of the Wyoming Public Records Act.

§ 8.8 The City of Cheyenne expressly reserves all immunities and defenses available under the Wyoming Governmental Claims Act, W.S. 1-39-101 et seq.

§ 8.9 The Architect agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Architect's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Architect, or its employees or subcontractors in the performance of this Agreement. The Architect acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

§ 8.10 Notices All notices, requests, claims, demands and other communications hereunder shall be in writing. Such notices shall be given (i) by delivery in person (ii) by a nationally recognized next day courier service, (iii) by first class, registered or certified mail, postage prepaid, (iv) by facsimile or (v) by electronic mail to the address of the party specified in this Agreement or such other address as either party may specify in writing. Notices so given shall be effective upon (i) receipt by the party to which notice is given, or (ii) on the fifth (5th) day following mailing, whichever occurs first.

This Agreement entered into as of the day and year first written above.

OWNER

CITY OF CHEYENNE, WYOMING

ARCHITECT

TDSI - THE DESIGN STUDIO, INC.

BY:

(Signature)

RICHARD L. KAYSEN, MAYOR

(Signature)

RANDY BYERS, AIA, LEED AP+, PROJECT ARCHITECT

(Printed name and title)

(Printed name and title)

(SEAL)

ATTEST:

CAROL INTLEKOFFER, CITY CLERK

ARTICLE 6 — SPECIAL TERMS AND CONDITIONS

Special terms and conditions that modify this Standard Form of Architect's Services: Construction Contract

Administration, if any, are as follows:

(In the space below, provide any modifications or refer to an exhibit attached to this document.)

Certification of Document's Authenticity

AIA® Document D401™ – 2003

I, Randy L. Byers, AIA, LEED AP+, hereby certify, to the best of my knowledge, information and belief, that I created the attached final document simultaneously with its associated Additions and Deletions Report and this certification at 18:29:36 on 10/08/2013 under Order No. 3718783680_1 from AIA Contract Documents software and that in preparing the attached final document I made no changes to the original text of AIA® Document B209™ – 2007, Standard Form of Architect's Services: Construction Contract Administration, for use where the Owner has retained another Architect for Design Services, as published by the AIA in its software, other than those additions and deletions shown in the associated Additions and Deletions Report.

(Signed)

(Title)

(Dated)